

		No later than five (5) court days before the continued hearing, Defendants may file and serve a responsive brief that addresses any new arguments or evidence submitted in Moving Parties' supplemental filing(s). Moving Parties to give notice.
5	Betancourt v. Airstream, Inc.	Defendant Airstream, Inc. moves to compel Plaintiffs Mark A. Betancourt and Gail Ann Ortiz to provide further responses to Defendant's first set of form interrogatories, special interrogatories, and requests for production of documents. For the following reasons, the motion is DENIED. Both Defendant and Plaintiffs' request for monetary sanctions are DENIED. "[A]ny party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action." (Code Civ. Proc. § 2024.020(a).) The date this matter was initially set for trial was February 9, 2026. (ROA 43.) Thus, the last day for discovery motions to be heard was January 26, 2026. On January 14, 2026, Defendant moved ex parte for an order continuing trial. The Court's Minute Order on that ex parte application states in part: The Trial is continued to 08/17/2026 at 09:00 AM in Compliance with Local Rule 317 is required. There is no order to continue the deadlines. In other words, the court's order continuing the trial to August 17, 2026 did <i>not</i> extend the discovery cutoff. "Except as provided in Section 2024.050, a continuance or postponement of the trial date does not operate to reopen discovery proceedings." Code Civ. Proc. § 2024.020(b). "Parties to an action may with the consent of any party affected by it, enter into an agreement to extend the time for the completion of discovery proceedings or for the hearing of motions concerning discovery, or to reopen discovery after a new date for trial of the action has been set. This agreement may be informal, but it shall be confirmed in a writing that specifies the extended date...." (Code Civ. Proc. §2024.060.) Defendant has presented no evidence of any agreement to extend the discovery motion cutoff date. In short, Defendant's motions are untimely. In the absence of a motion to reopen discovery – which Defendant has not filed – the court cannot grant the motion. One such court granted a motion to compel after the discovery cutoff had expired. "By simply hearing the motion to compel without first deciding whether discovery should be reopened for that purpose under